

ZIMBABWE MEDIA COMMISSION



**SUMMARY OF FREEDOM OF INFORMATION ACT
[CHAPTER 10:33]**

2024

Freedom of Information (General) Regulations, 2021

The Freedom of Information Act (FOIA) must be read and implemented in conjunction with the Freedom of Information (General) Regulations, 2021. The Regulations spell out everything outlined in FOIA, from Section 1 which spells out the Title of the Act, up to the Schedules outlining the request form of the Zimbabwe Media Commission Request for Access to Information, as well as Form of Acknowledgement by the Information Officer. The Regulations further outline the procedure towards access to information and the role of Information Officers; Rights of Access; Appeals and Miscellaneous. As such, anyone seeking to understand FOIA better should study it side by side with the Regulations.

Purpose

The act is one of the legal instruments enacted by the Government for the realisation of one of the fundamental principles of the Bill of rights. Specifically, it makes live provisions of section 62 that guarantee citizens' right to access information held by public bodies.

The purpose of this law is to ensure that citizens enjoy their constitutional rights in terms of freedom of expression, freedom of the media, and the right to access information that is held by entities and organizations in the interest of public accountability and transparency and for the exercise or protection of a right. The law also repealed the Access to Information and Protection of Privacy Act (Chapter 10: 27) as part of the media reform agenda to make information accessible to all citizens as outlined in the constitution.

The law is derived from the Constitution of Zimbabwe Amendment 20 Act, section 62.

Section 61 Freedom of expression and freedom of the media

This section says that every person has the right to freedom of expression, which includes the freedom to seek, receive, and communicate ideas and other information, including the freedom of artistic expression, scientific research, creativity, and academic freedom. Citizens are also entitled to freedom of the

media, which includes protection of the confidentiality of sources used by journalists. Broadcasting and other electronic media are also free to be established as long as they follow licensing procedures in terms the regulation of the airwaves and signal distribution and as long as they are independent of control by Government or by political or commercial interests.

The section also provides that all the media must be free to choose their editorial content and other broadcasts in a free manner, be impartial, and allow the presentation of divergent views and dissenting voices to all. The freedom of expression and freedom of the media does not include the following;

- ⊙ Incitement to violence
- ⊙ Advocacy of hatred or hate speech
- ⊙ Malicious injury to a person's reputation or dignity
- ⊙ Malicious or unwarranted breach of a person's right of privacy

Section 62 Access to Information

This section says that every Zimbabwean citizen or permanent resident, person at law, and the Zimbabwean media have the right to access any information held by the state or by any institution or agency of Government at every level if the information is needed for public accountability and transparency. Every person including the Zimbabwean media has the right of access to any information held by any person including the state if the information is needed for the protection of a right. Every person also has the right to the correction of information or the deletion of information that is not true, has errors, or is misleading which is in the hands of the state or any institution or agency of the Government at any level, and which relates to that person.

The Constitution of Zimbabwe also says there must be laws that should allow people to allow rights to information, and restrict access in the interests of defence, public security, or professional confidentiality in a way that is fair, reasonable, necessary, and justifiable in a democratic society based on openness,

justice, human dignity, equality, and freedom. This is the context that gave rise to the enactment of the Freedom of Information Act (Chapter 10:33).

Purpose of the Act

- ⦿ The law gives power to the right of citizens to access information as outlined in the Constitution.
- ⦿ Allows for the establishment of voluntary and mandatory mechanisms or procedures to allow citizens to access information in affordable, quick, and easy manner.
- ⦿ Promote transparency, accountability, and effective governance by taking any necessary steps to make sure that citizens are educated and informed of their rights to access information according to this law. There is a need to ensure that assistance is given to members of the public who want to access information and facilitation.

Access to information

The law provides that every person in a position of responsibility who is in charge of a statutory office must make sure that there is a creation, keeping, organization and maintenance of information in the interests of public accountability, the exercise or protection of a right. Every public entity, commercial entity or holder of a statutory office must have a written information disclosure policy outlining how they will disclose information in the interests of public accountability so that citizens can exercise or protect a right to public information. Access to information may not apply to the deliberations or functions of the Cabinet and its committees and to information protected from disclosures in victim-friendly courts.

Request for information

Any person can request access to information from any public entity, commercial entity, or holder of a statutory office in writing to an information officer of that entity, public commercial entity, or office holder of a statutory office. When the request is received, the information officer must show evidence in writing of the

receipt of the request. If the information officer has the information to the satisfaction required, to make it available.

Response to request

An information officer must respond to a request within twenty-one days and the information officer must show whether they will give information in writing, and if so, then they will give access to information. If the information requested is meant to safeguard the life or liberty of a person, the office holder or holder of a statutory office should do so within 48 hours and show whether such a request may be granted and notify the applicant in writing, and if the request is granted, access should be given within 48 hours.

If the request is granted, the notification to give information must be specified in terms of the form in which access will be given, fees that must be paid which include reproduction, translation, or transcription fees, or whether these must be paid before the processing of the request.

If the information officer determines that the request has been granted to the applicant he or she shall give immediate access to information if the payable fees have been paid and also similarly proceed if there is no fee payable.

Information given in terms of this law shall be truthful and accurate in every respect and should be relied upon in terms of use. If the information officer provides additional information or updated information than previously given, all the other information given before will be treated as not true and accurate in all respects.

If the information requested involves other people or third parties, access will only be given if the appeal to release the information has expired or until any appeal by a third party has been finally determined.

The information officer may give access to information after removing information that does not affect the third party from the original document. In case of refusal of access, the information officer may provide the reasons for refusal based on the contents and substance of the request and the information

officer must cite the appropriate section of the Act which prohibits them from doing so and also inform the applicant of their right to appeal against the refusal of access. The information officer must reply within 48 hours of the submission of a request.

If the information officer deems that that information requested is not reasonably necessary to safeguard the life or liberty of a person they should notify the applicant accordingly and inform them that they have a right to appeal the decision on an urgent basis to the Commission in terms of section 36(5). In addition, available information shall be provided as soon as possible if it is available.

Extension of time

An information officer, responding to a request, may within 21 days ask for permission from the applicant for an extension which must not exceed 14 days if the information is for a large amount or requires extensive search and meeting the original time may interfere with the operations of the entity or if operations of the entity or if consultations may not be reasonably completed within 21 days to comply with the request.

If the applicant thinks that seeking consent by the principal officer is dilatory or if the information officer does not obtain the consent of the applicant for the extension, either the applicant or the information officer may lodge an appeal with the Commission in terms of Section 35.

Deemed refusal

If an information officer fails to notify a decision on a request for access to information within the special period (21 days) 48 hours or after the 14-day extension, it shall be regarded that access to information has been refused. In this case, an applicant may appeal to the Commission in terms of section 35.

Deferment of access

Access to information requests may be deferred if the information has been prepared for Parliament or it is a report that has been prepared for reporting to a public entity or a public officer but only until the report has been presented or made available to that public entity or public office or upon the expiration of thirty days from the date of the request whichever starts. Access can also be deferred if the information is in sub-judice.

In case of deferment of access, the information officer should notify the applicant of the deferment within 21 days of the date of the request, the reasons for the deferment and the relevant sections of the law on which they rely, and the period within which the access will be deferred. The applicant shall also be told of the right to make representations within 14 days of receiving notice to the information officer why the information is needed before such a presentation to Parliament or to report to a public office or entity.

After considering the representation by the applicant, an information officer shall within 5 days grant the request to access if there are reasonable grounds for believing that the applicant will suffer substantial prejudice if access to the information is deferred for the period access is denied.

Information that cannot be found or does not exist

- ⦿ An information officer shall within 21 days of receiving a request notify the applicant in writing that the information requested does not exist or cannot be found if they have taken reasonable steps that it cannot be found or does not exist.
- ⦿ If the information is found late after the notification, the information officer must notify the applicant in writing within 14 days of the information being found and proceed to the normal procedure to respond to the information request as outlined in Section 8 of the Act.

Forms of access

Access to information will be given in the following ways:-

- ⦿ Giving a reasonable opportunity to inspect the information.

- ⦿ Providing a copy of the information or if the information is an article or copy or thing by means of which sounds or visual images that can be reproduced by making suitable arrangements for the person to hear, view, record, copy those sounds or visual images including means of braille and Sign Language
- ⦿ In the case of information by which words are recorded in a manner in which they are capable of being reproduced in the form of sound or in which words are contained in the form of shorthand writing or in codified form, by the provision of a written transcript; or
- ⦿ In the case of information which is held on a computer, or in electronic or machine-readable form, and from which the entity concerned is capable of producing a printed copy of the information or part thereof, by supplying such a copy; or
- ⦿ In the case of information available or capable of being made available in computer-readable form, by supplying a copy in that form.
- ⦿ If an applicant requests the information in a particular form, access must be given in that form. Applicants are free to amend their preferred form of access (if they pay for reproduction, translation, or transcription fees) if the access has been granted in the form they had initially requested.
- ⦿ Access to information requested may be refused if it is likely to unreasonably interfere with the operations of an entity or is detrimental to the preservation of the information or is inappropriate, having regard to the physical nature of the information.
- ⦿ When an applicant requests information in a particular form but access is refused but given another form, the reproduction fees charged may not exceed the fee that would have been charged if the applicant had been given access in the form requested.

Severability

Where any information is contained in a record or document with information protected in terms of this Act, the protected information shall

be severed from the record or document, and access to the remainder of the information shall be granted to the applicant.

Access to health or other records

In cases where an information officer receives a request for access to information by a health practitioner in his or her capacity as such about the physical or mental health or well-being either of an applicant or if the request has been made on behalf of a person to whom the record relates of that person and if the information officer thinks that the disclosure of the information might cause serious harm to the applicant's or that person's physical or mental health, or well-being, the information officer shall, before giving access to the record of the information, consult with a health practitioner.

If the person represented in the request is under the age of 18 years, a person having parental responsibilities for that person shall make the nomination or is incapable of managing his or her own affairs, a person appointed by the court to manage these affairs must make the nomination.

If, after being given access to the record concerned, the health practitioner consulted thinks that the disclosure of the information to the persons concerned is likely to cause serious harm to his or her physical or mental health, or well-being, the information officer may only give access to the information if the applicant proves to the satisfaction of the information officer that adequate provision has been made for such counselling or arrangements as are reasonably practicable and necessary before, during, or after the disclosure of the information to limit, alleviate, or avoid any harm.

Before access to the information is so given in terms of this section, the person responsible for the counseling or arrangements shall be given access to the record.

Language of access

The information must be provided to an applicant in such officially recognised language as the applicant requests.

Where an entity does not hold the information in the requested language, the entity concerned shall endeavour to translate it into the requested language and may recover the reasonable costs of the translation from the applicant.

Fees

- ⦿ An applicant should be notified in due course of the fees due for access to information before further processing of the request is carried out. If the preparation of information requires more time than is prescribed in the Act, an information officer may notify the applicant in writing to pay a deposit, an amount not more than one-third of access fees payable.
- ⦿ An applicant will pay in addition to the access fees prescribed, an additional fee for any time reasonably requested in excess of the prescribed hours to search for and prepare the information requested.
- ⦿ Fees that are prescribed refer to the cost of making a copy of the information in any form, the time reasonably required to search for the information, and preparation of information, costs of translation where the request is made that information released be made available in a language other than in which it is already held by the entity and payment for the inspection of any records.
- ⦿ The Line Minister may also publish by way of a notice in the Government Gazette, the fees, how it is calculated, and those who are exempt from paying.

Reports to the Commission

- ⦿ Every responsible person or holder of a statutory office must annually submit to the Commission a report stating the number of requests for access to information received, for access granted in full, requests for access refused in full or partially and the number of times, the number of times that a request for access was regarded as having been refused.

- ⦿ Entities may grant greater access to information
- ⦿ Nothing in the Act shall be construed as preventing or discouraging any entity from publishing or giving access to information, including information exempt from disclosure in terms of the Act, where they can properly do so or are required by law to do so.

Refusal of access

An entity may refuse to grant access to information only if the information falls within exemptions such as follows:

- ⦿ Protection of personal information of a third party who is a natural person;
- ⦿ Protection of commercial information of a third party and private entity;
- ⦿ Protection of certain other confidential information of a third party;
- ⦿ Protection of the safety of individuals and property;
- ⦿ Protection of information in bail proceedings, law enforcement, and other legal proceedings;
- ⦿ Protection of legally privileged information;
- ⦿ Protection of defense, security, and international relations of the State;
- ⦿ Protection of economic interests and financial welfare of the State and commercial interests of public entities;
- ⦿ Protection of research information of third party or entity;
- ⦿ Operations of public entities; and
- ⦿ Manifestly frivolous or vexatious requests, or requests involving substantial and unreasonable diversion of resources.

Right to appeal

An applicant may lodge an appeal to the Commission against any decision of an information officer in terms of this Act. A third party may lodge an appeal to the Commission against a decision of the information officer to grant a request for access to information concerning that third party's information.

Procedure on appeal

When making an appeal the following procedure will be followed:

- ⦿ The appeal shall be lodged in the prescribed form and within 30 days of the date of notification of the decision appealed against; and
- ⦿ be delivered or sent to the Commission; and
- ⦿ identify the subject of the appeal and state the reasons for the appeal and may include any other relevant information known to the appellant; and
- ⦿ if, in addition to a written response, the appellant wishes to be informed of the decision on the appeal in any other manner, provide the necessary details to that effect; and
- ⦿ if applicable, be accompanied by the prescribed fee; and
- ⦿ specify the appellant's address and phone number.

If an appeal is lodged after the expiry of the period the Secretary of the Commission may, on good cause shown, allow the late lodging of the appeal; or the Secretary of the Commission disallows the late lodging of the appeal, the Secretary shall give notice of that decision to the appellant.

An appeal against the refusal of a request for access to information shall be accompanied by the prescribed fee, if any and if a fee is payable, the decision on the appeal may be deferred until such fee is paid.

As soon as reasonably possible, but in any event within 10 working days of the date of the lodging of an appeal, an information officer shall submit to the Secretary of the Commission the application for access to information together with the officer's reasons for refusing access.

Regulations

The Commission, after consultation with the Line Minister, may make regulations providing for all matters which by this Act are required or permitted to be prescribed or which, in the Commission's opinion, are necessary or convenient to be prescribed to carry out or give effect to this Act.

Regulations may provide for:

- ⦿ any matter relating to the levy of fees contemplated in terms of this Act;
- ⦿ the form of any notice required by this Act;
- ⦿ uniform criteria to be applied by the information officer of an entity when deciding which information is to be made available;
- ⦿ the standards to be observed by employees of public entities when responding to requests for information;
- ⦿ the procedures and code of ethics to be followed when disclosing information;
- ⦿ persons, organisations, or institutions exempted from the provisions of this Act; and
- ⦿ any administrative or procedural matter necessary to give effect to the provisions of this Act.

Regulations may provide for penalties for contraventions thereof:

- ⦿ Provided that no such penalty shall exceed a fine of level six or imprisonment for a period not exceeding one year or both such fine and such imprisonment.

